

Court No. - 3

Case :- WRIT - C No. - 3856 of 2022

Petitioner :- Ghalendra Singh

Respondent :- State Of U.P Thru Secretary Home Lknw. And 3 Others

Counsel for Petitioner :- Shaili Ganguly, Archana Jha, Pragati

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

List with previous papers.

Order Date :- 3.3.2022

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Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Shri Rajesh Yadav, learned counsel for the respondent no. 4.

This writ petition has been filed praying for the following relief:

"(a) Issue a writ, order or direction in the nature of Certiorari quashing the recovery citation dated 23.12.2021 issued by the respondent No. 3 (Contained as Annexure No. 5) to this writ petition.

(b) Issue a writ, order or direction in the nature of Mandamus directing the respondents not to compel the petitioner for depositing any amount in pursuance of the recovery citation dated 23.12.2021 issued by the respondent No. 3."

Learned counsel for the respondent no. 4 states, on instructions, that the petitioner may file his objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within three weeks from today and in the event, such an objection is filed within the stipulated period, it shall be decided by the respondent no. 4 by speaking and reasoned order within next four weeks after affording reasonable opportunity of hearing to the petitioner.

This writ petition is **disposed of** in terms of the statement made by learned counsel for the respondent no. 4 as noted above.

Order Date :- 13.5.2022

A. V. Singh